

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2016-2439

STIPULATION AND FINAL BOARD ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF
COLORADO OF ANDREW NEWKIRK ROSE, LICENSE NO. LPC 11337,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners and (the "Board") and Andrew Newkirk Rose ("Respondent") as follows:

1. Respondent is a licensed professional counselor ("LPC"), license number LPC 11337, within the State of Colorado.
2. The Board has jurisdiction over Respondent and the subject matter of this Stipulation and Final Board Order ("Order") pursuant to the provisions of the Mental Health Practice Act, § 12-43-101 *et seq.*, C.R.S. ("MHPA").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of case number 2016-2439 without the necessity of holding a formal hearing.
4. This Order is a full and final resolution of case number 2016-2439. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
5. Respondent admits the following:
 - a. Respondent treated client J.C. from 2009 to 2014.
 - b. During the termination session with client J.C., Respondent utilized language that client J.C. perceived as threatening

including, but not limited to, discussing client J.C.'s waiver of confidentiality if she filed a complaint with the Board.

- c. Respondent's records for client J.C. failed to contain a signed mandatory disclosure form, treatment plan, final closing statement, and were not maintained in a manner that would allow a subsequent provider to yield a comprehensive conclusion as to what occurred.
- d. Respondent may only continue to practice as an LPC with treatment and monitoring during the probationary period as listed below.
- e. Respondent inadvertently breached confidentiality by disclosing information about client J.C. to include posting documentation to his website that included J.C.'s diagnoses, mental health history, full name, P.O. Box, and e-mail address.
- f. Respondent acted in a manner, with client J.C., that does not meet the generally accepted standards of his professional discipline.

6. By virtue of the facts admitted in paragraph 5 above, the Board finds that Respondent violated §§ 12-43-218(1), 12-43-222(1)(b), (g)(I), (h), and (u), C.R.S.

PROBATION

7. Respondent's license to practice as an LPC in the State of Colorado is hereby placed on probation for five (5) years commencing from the effective date of this Order. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during any time that Respondent is not practicing as an LPC in the State of Colorado, and such period of probation shall resume at such time as Respondent resumes practicing as an LPC in the State of Colorado in accordance with this Order.

9. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as an LPC in the State of Colorado and is in full compliance with this Order.

10. If, after three (3) years of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request early termination of the probation. Request for termination of probation must be made in

writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation.

PRACTICE MONITOR

11. During the term of probation, Respondent's practice shall be monitored by a practice monitor. Within 30 days of the effective date of this Order, Respondent shall submit, in writing, three (3) proposed practice monitors for the Board's approval. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until he submits three (3) proposed practice monitors. Respondent shall include a program-approved practice monitor application from each potential monitor, with attached curriculum vita or resume. The practice monitor shall meet the following criteria:

- a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;
- b. It is recommended that the practice monitor have a minimum of five (5) years of experience and has not been subject to professional discipline; and,
- c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

12. After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring within thirty (30) days of the date of the Board's written approval of the practice monitor. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until the written contract for practice monitoring is executed. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and any prior practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

13. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and his qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether he has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

14. Should the Board determine from the practice monitor's evaluation that Respondent cannot practice any part of his practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease any part of the practice that the Board determines, based on the evaluation, he is not qualified, competent, or safe to conduct. Based on the Board's findings and the evaluation, the Board will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Board that he is qualified, competent, and safe to fully practice, Respondent may resume full practice.

15. The practice monitoring shall consist of individual sessions. The first session must be in-person (face-to-face), but sessions thereafter may be conducted via video conferencing. Practice monitoring sessions must occur for one (1) hour, or such longer time as the practice monitor deems necessary, but at least once each month. Respondent and his practice monitor must review and discuss each of Respondent's active cases at least once every month for the first 12 months in order to allow the practice monitor to be able to determine whether Respondent is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for his clients. After the first 12 months, the practice monitor has discretion to alter the frequency of individual, in-person (face-to-face) sessions with Respondent, but said sessions may not occur less than once each quarter.

16. The practice monitor shall submit a written report to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first twelve (12) reports. After the submission of the first twelve (12) reports the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

17. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to

address the Board's concerns. The Board will give the practice monitor 30 days of notice prior to requiring the practice monitor's attendance at the Board meeting.

18. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to his clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

19. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

20. Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct her/his monitoring and report to the Board in accordance with this Order.

PSYCHOTHERAPY

21. During the term of probation, Respondent shall undergo psychotherapy with a mental health provider ("therapist"). This psychotherapy may be satisfied via Respondent's current therapist.

22. Within 30 days of the effective date of this Order, the following must be completed:

- a. Respondent's therapist must complete and submit the therapy monitor application provided by the Board;
- b. Respondent's therapist must submit a copy of his/her current resume; and,
- c. Respondent and the therapist must enter into a written contract for psychotherapy.

23. The therapist shall conduct therapy and report to the Board in writing as follows:

- a. The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once each month, unless otherwise approved by the Board based on recommendations of the therapist;
- b. The therapist shall report to the Board in writing both the progress of the psychotherapy and whether Respondent is able to practice with reasonable skill and safety for his clients, and must send a copy of each report to Respondent. The therapist shall submit his/her first report by the fifth day of the month following the first month of the psychotherapy. The therapist shall submit subsequent reports by the fifth day of every month thereafter for the first 12 months. After submission of the first 12 reports, unless otherwise ordered by the Board, the therapist shall submit reports by the fifth day of every third month (i.e., on a quarterly basis) until the therapy is completed; and,
- c. In the first report, the therapist shall state that s/he has received and read a copy of this Order and the Board's file, and must state that s/he understands and agrees to the duties and responsibilities s/he is undertaking as Respondent's therapist.

24. If, at any time, the therapist is of the opinion that Respondent is practicing as an LPC in a manner that does not meet the generally accepted standards of practice or has a condition that renders him unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his care, the therapist shall report such opinion and the reasons for that opinion to the Board. The therapist shall make that report, in writing, within 48 hours of forming his/her opinion. The therapist shall send a copy of such report to the practice monitor and Respondent when s/he sends the report to the Board. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

25. Either Respondent or his therapist may terminate the therapeutic relationship upon written notice to the other and the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. If Respondent does not have another Board-approved therapist prior to the termination date, Respondent shall cease the practice of professional counseling until he has another Board-approved therapist in place. The subsequent therapist shall conduct therapy with Respondent and report to the Board in accordance with this Order.

26. Respondent cannot practice as an LPC during the period of probation, and must cease the practice of professional counseling if he is not undergoing psychotherapy with a Board-approved therapist in accordance with this Order, unless otherwise provided by the Board based on the recommendations of the therapist.

CONTINUING EDUCATION

27. Respondent shall successfully complete the ProBE – Professional/Problem Based Ethics program (www.cpepdoc.org) within one (1) year of the effective date of this Order. To successfully complete the program, Respondent must receive a passing evaluation or grade, without any condition or qualification. Upon completion of the program, Respondent shall ensure that a certificate/letter of completion is provided to the Board. These program hours completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other licensure requirements.

28. During the period of probation, Respondent must successfully complete 20 hours of Board-approved professional continuing education (“CE”) courses in the area of record keeping. Respondent shall obtain Board approval of the courses prior to enrollment therein. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Board.

29. The hours of CE completed pursuant to this Order shall be in addition to, and may not be counted toward, the continuing professional competency requirements set forth in § 12-43-605, C.R.S.

TERMS AND CONDITIONS

30. Respondent will strictly observe the prohibitions set forth in § 12-43-222, C.R.S., and will ensure that he practices in accordance with the generally accepted standards of practice.

31. All expenses incurred or associated with any requirement necessary to fulfill the terms of this Order shall be the sole responsibility of Respondent.

32. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Boards of the change of address within 30 days of the effective date of such change.

33. Respondent is fully aware of and understands his right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Respondent

acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

34. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

35. This Order shall constitute a Board Order for purposes of § 12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to § 12-43-224, C.R.S.

36. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the MHPA and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

37. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

38. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

39. This Order shall be a public record in the custody of the Board.

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AGREED TO AND ACCEPTED BY:

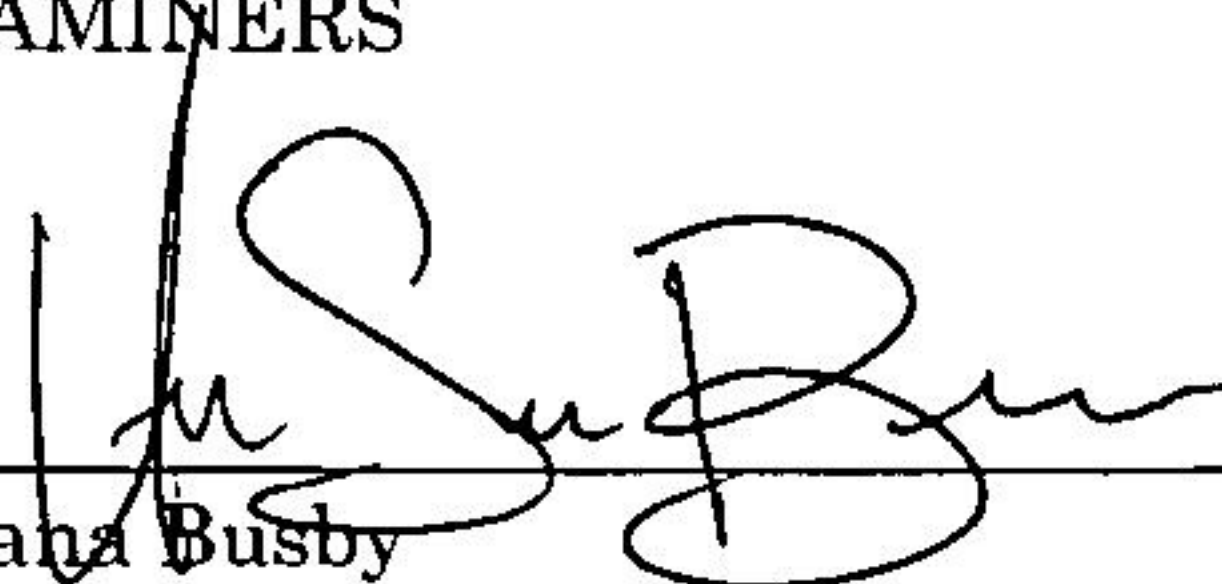
RESPONDENT



Andrew Newkirk Rose, License No. LPC
11337

AGREED TO AND ORDERED BY:

**BOARD OF LICENSED
PROFESSIONAL COUNSELOR
EXAMINERS**



Ariana Busby
Program Director

Effective this Date:

10 / 2 / 19